



CHAPTER 87.

An Act to enable the Admiralty to dispense, in certain cases, with the requirements of section five of the Navy and Marines (Wills) Act, 1865.
[5th September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) With respect to any instrument or statement appearing to the Admiralty—

- (a) to have been executed or made, before the end of the emergency that was the occasion of the passing of this Act, by a person while serving as a seaman or a marine, and
- (b) to have been intended by him to operate as a testamentary disposition of naval assets (either alone or together with any other property),

Exemption of certain wills from operation of s. 5 of Navy and Marines (Wills) Act, 1865.

the Admiralty, if they think fit so to do, may direct that section five of the Navy and Marines (Wills) Act, 1865, (which prescribes the form in which the wills of seamen and marines must be made in order to be valid for the disposal of naval assets) shall not apply in relation to the said instrument or statement.

28 & 29 Vict. c. 72.

(2) In this section the expression “naval assets” means, in relation to any person, any wages, prize

money, bounty money, grant or other allowances in the nature thereof, or other money payable to him by the Admiralty, or any effects or money belonging to him and in charge of the Admiralty; and the expression "the end of the emergency that was the occasion of the passing of this Act" means such day as His Majesty may by Order in Council declare to be the day on which that emergency came to an end.

Short title,
construction and
citation.

2. This Act may be cited as the Navy and Marines (Wills) Act, 1939, and shall be construed as one with the Navy and Marines (Wills) Acts, 1865 and 1930; and those Acts and this Act may be cited together as the Navy and Marines (Wills) Acts, 1865 to 1939.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1d. net